

24CHCV03397 24CHCV03397

County: los-angeles

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Department: F49

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Case Number: 24CHCV03397 Hearing Date: July 27, 2026 Dept: F49

Dept. F49

Date: 7/27/26

Case Name: Estefania Valotto vs. Kimberly Lizette

Portillo; Luis Portillo; and Does 1-99

Case No. 24CHCV03397

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 27, 2026

MOTION TO COMPEL RESPONSES

TO FORM INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03397

Motion filed: 2/19/26

MOVING PARTY: Defendant Kimberly Lizette Portillo

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff to respond to Defendant's Form Interrogatories, Set One; and awarding monetary sanctions in the amount of \$380.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Estefania Valotto ("Plaintiff") in a motor vehicle accident that occurred while Plaintiff was travelling on northbound Interstate 5. On September 19, 2024, Plaintiff filed the Complaint against Kimberly Lizette Portillo ("Defendant"), Luis Portillo, and Does 1 through 99, alleging motor vehicle and general negligence. On July 17, 2025, at the request of Plaintiff, Luis Portillo was dismissed from the action.

On December 18, 2025, Defendant filed her Answer to the Complaint.

On February 19, 2026, Defendant filed the instant motion to compel Plaintiff to respond to Defendant's Form Interrogatories, Set One (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.

Motion to Compel Responses to Form Interrogatories

"A defendant may propound interrogatories to a party to the action without leave of court at any time." (Code Civ. Proc. § 2030.020, subd. (a).) "Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve

the original of the response to them on the propounding party.” (Code Civ. Proc. § 2030.260, subd. (a).)

If a party fails to timely serve responses to interrogatories, the propounding party may move for an order compelling response. (Code Civ. Proc. § 2030.290, subd. (b).)

A party who fails to timely respond to interrogatories waives “any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve the party from that waiver if the party has subsequently served a response that substantially complies with the statute and the failure to serve a timely response was due to mistake, inadvertence, or excusable neglect. (Ibid.)

Defendant avers that she served her Form Interrogatories, Set One on Plaintiff on December 18, 2025. (Mot., at p. 3.) The interrogatories are attached to the declaration of Defendant's counsel, and the proof of service confirms that they were served by email on Plaintiff's counsel on December 18, 2025. (Brockenbrow Decl., Exh. A.) Responses were accordingly due on January 21, 2026. Defendant's counsel attests that, as of the filing of the Motion, she had not received any responses to the interrogatories, despite reaching out on January 26, 2026 to inquire about the non-response and voluntarily granting an extension to January 30, 2026 to serve objection-free responses. (Id., ¶ 6, Exh. B.)

Based on the foregoing, the Court finds that Plaintiff has failed to serve timely responses to Defendant's Form Interrogatories, Set One, thereby waiving any objections to those interrogatories, including those based on privilege or work product.

Plaintiff has not opposed the Motion or moved separately for relief from the waiver of objection. Further, there is no indication that any Plaintiff has subsequently served responses prior to the hearing on the Motion. The Court thus finds that relief from waiver under Code of Civil Procedure section 2030.290, subdivision (a) is unavailable.

Accordingly, the Court GRANTS the Motion.

B.

Monetary Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290(c)).

Code of Civil Procedure section 2023.030

authorizes the Court to impose monetary sanctions against any party, person, or attorney who engages in conduct that constitutes a misuse of the discovery process. Misuses of the discovery process include failing to respond to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) Further, the Court may award sanctions "in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Defendant

requests monetary sanctions against Plaintiff and her counsel of record in the amount of \$380.00, calculated as one hour spent preparing the Motion and one hour for appearance at the hearing, plus \$60 in filing fees. (Brockenbrow Decl., ¶ 7.)

Given that Plaintiff

has not served responses to the interrogatories or filed an opposition providing good cause for non-response, the Court finds sanctions appropriate. The Court finds Defendant's counsel's hourly rate of \$160.00 and the hours claimed to be reasonable.

Defendant's

request for monetary sanctions is thus GRANTED.

CONCLUSION

The Court GRANTS Defendant Kimberly Lizette Portillo's motion to compel Plaintiff Estefania Valotto's responses to Defendant's Form Interrogatories, Set One. Plaintiff is ordered to serve verified responses,

without objection, to Defendant's Form Interrogatories, Set One within 30 days.

The

Court GRANTS Defendant's request for sanctions. Plaintiff

Estefania Valotto and her attorney of record are ordered to pay \$380.00 to Defendant within 30 days.

Moving party to give notice.